

Court No. - 21

Case :- WRIT - C No. - 17000 of 2022

Petitioner :- Bhagwati Prasad And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Balendra Kumar Singh, Anil Kumar Dubey, Sr. Advocate

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Sameer Jain, J.

The instant petition has been filed praying for quashing of the recovery citation dated 28.12.2021/12.1.2022. The recovery citation has been issued for recovery of electricity dues from the petitioners.

Learned counsel for the petitioners submitted that the petitioners are ready to make payment in easy installments.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department, states that at present OTS Scheme is in force and it is open to the petitioners to avail benefit of the same. He states that in case the petitioners approach the respondent-department under OTS Scheme, their request for installment and waiver will be considered sympathetically.

Accordingly, without interfering with the impugned recovery citation, we dispose of the instant petition with liberty to the petitioners to avail the benefit of OTS Scheme, if so advised, or else, move independent application for payment of the sum due in installments as per Clause 6.14 of the U.P. Electricity Supply Code, 2005.

(Sameer Jain, J.) (Manoj Kumar Gupta, J.)

Order Date :- 14.6.2022

Jaideep/-